

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-09

**HAPAG-LLOYD, A.G. and HAPAG-LLOYD (AMERICA) LLC. —POSSIBLE
VIOLATIONS OF 46 U.S.C. § 41102(c)**

SECOND JOINT STATUS REPORT

As directed by the Administrative Law Judge’s Order Rejecting Proposed Schedule (Order), served December 20, 2021, the Bureau of Enforcement (BOE) and Respondents Hapag-Lloyd, A.G., and Hapag-Lloyd (America) LLC (collectively, “Hapag-Lloyd”) submit this second Joint Status Report and state as follows:

Counsel for the BOE and Hapag-Lloyd (the Parties) conferred on December 27, 2021, to discuss limitations on discovery, proposed stipulated facts, and the current proceeding with regards to the Order. The Parties agreed to limit discovery by setting a deadline for the service of initial discovery requests and a date for the commencement of depositions. The Parties also agreed to limit each party to six virtually held depositions. The Parties further agreed to limit discovery to one expert witness each, with written expert testimony only. And to accommodate the expedited briefing schedule, the Parties agreed to conclude discovery on or before March 4, 2022.

Based on their discussions and agreements, the Parties propose the following revised

schedule of deadlines¹:

- a. January 3, 2022 Deadline for service of Parties' Initial Discovery Requests;
- b. January 18, 2022 Deadline for Parties' Responses to Initial Discovery Requests;
- c. January 18, 2022 BOE's Expert Witness Report Deadline;
- d. January 19, 2022 Depositions to Commence;
- e. February 2, 2022 Respondents' Expert Witness Report Deadline;
- f. February 4, 2022 Depositions to Conclude;
- g. February 7, 2022 Last Day to Serve Discovery Requests;
- h. March 4, 2022 End of Discovery;
- i. March 11, 2022 BOE's brief, findings of fact, and appendix deadline;
- j. March 21, 2022 Respondents' brief, findings of fact, appendix, and response
 deadline;
- k. March 25, 2022 BOE's reply brief deadline;
- l. March 28, 2022 Prehearing conference
- m. March 31, 2022 Prehearing statement(s) due
- n. April 4, 2022 Proposed Date of Oral Hearing²

The Parties previously conferred on any anticipated impacts that the above proposed schedule may have on other proceedings.

Finally, the Parties discussed filing a joint stipulation of facts, and the BOE has provided counsel with a proposed joint stipulation of facts for their client to review. The proposal is

¹ Despite their agreement to this proposed schedule, Respondents' position is that the expedited schedule in this proceeding is unjustified, unnecessary, arbitrary and capricious, and an abuse of discretion. Respondents therefore expressly reserve the right to challenge the lawfulness of the expedited schedule in this proceeding.

² The Parties propose the prehearing dates and oral hearing date for the convenience of the ALJ's schedule. The Parties leave all dates for the ALJ's discretion per 46 C.F.R. §§ 502.209–502.211. It is possible any oral hearing could take more than a single day, depending on how this matter progresses.

generally acceptable to counsel for Respondents, who will be proposing additional factual stipulations. The Parties have agreed to continue their discussion of stipulated facts as discovery progresses.

DATED: January 3, 2022

Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that on this 3rd day of January 2022, a copy of the foregoing Joint Status Report has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

MARYANNE
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Signing Attorney

Counsel for Respondents Hapag-Lloyd, A.G., and Hapag-Lloyd (America) LLC

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